



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 21322
(FIRST REVISION)

EXPIRATION DATE: 2026-02-28

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Federal Express Corporation
Memphis, TN
FAA Certificate Number: FDEA140A (Part 121)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes relief from the air carrier quantity limitations and cargo location requirements under 49 CFR 175.75(c) and (d) for the transportation in commerce of hazardous materials. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analysis performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
 - d. This permit does not extend to or address any other applicable regulations.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 175.75(c) and (d) in that the limits and location requirements do not apply when hazardous materials are transported in Cessna Model 408 SkyCourier all cargo aircraft.
5. BASIS: This special permit is based on the request for reconsideration of Federal Express Corporation dated June 12, 2024, submitted in accordance with §107.123 and additional information submitted on August 8, 2024, November 7, 2024, January 14, 2025, January 22, 2025, and additional information dated April 30, 2025.

Tracking Number: 2025054279

6. HAZARDOUS MATERIALS (49 CFR 172.101): As authorized by the HMR for cargo-only aircraft and as described in the FedEx Dangerous Goods Manual, 02-1(C) and (F), on file with the Office of Hazardous Materials Safety (OHMS).

7. SAFETY CONTROL MEASURES:

a. PACKAGING: As prescribed in the HMR.

b. OPERATIONAL CONTROLS:

(1) The net weight of hazardous materials subject to quantity and loading limits 175.75 (c) and (d)(1) onboard the aircraft must not exceed 600 lbs (272 kg).

(2) Safeguards must be incorporated to ensure load-planning personnel adhere to the net weight quantity restrictions (e.g., automated within WORKBENCH manifest and weight and balance system).

(3) The hazard classes and quantities of hazardous materials transported under the terms of this special permit must be reported in writing each quarter to the Principal Hazardous Material Inspector (PHI).

(4) Separation and Stowage: Hazardous materials subject to 175.75 (c) and (d)(1) must be loaded in a manner consistent with separation and stowage requirements in 49 CFR 175.78 and 175.88. Materials must be loaded and stowed using a rigid, fire-retardant container constructed with materials that meet 14 CFR Part 25 Appendix F flammability tests and conform to the design in the application on file with the Office of Hazardous Materials Safety, a fire containment bag conforming to the design in the application on file with the Office of Hazardous Material Safety, or a combination thereof.

(5) Lithium batteries classified as UN3480 and UN3090 must be loaded in a fire containment bag and stowed separately from the hazardous materials in the bag and container described in paragraphs 7.b.4, consistent with the separation standards in 175.78(b)(2).

(6) Federal Express must notify the assigned Principal Hazardous Materials Inspector (PHI) of any changes to the FedEx Dangerous Goods Manual(s) related to this special permit prior to use of the modified manuals.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification

or change is made to the package or its contents and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Cargo-only aircraft.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each aircraft used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
 - o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) —“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. in writing following the reporting

procedures in 171.15 and 171.16, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:

A handwritten signature in dark ink, appearing to read 'William Schoonover', written in a cursive style.

for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: DB